



ELECTRICITY OMBUDSMAN, UTTAR PRADESH

Representation No. 23 of 2026

Sri Alok Kumar @ Alok Sharma, husband of Akanksha Sharma (The Owner), resident of Flat No. A-508, OXY Homes, Bhopura, Loni Road, Ghaziabad, U.P. **Representationist**

VERSUS

1. OXY Homes Apartment Owners Association, Bhopura Loni Road, Near Koyal Enclave, Ghaziabad, Uttar Pradesh-201102
2. M/s OXY Homes Super Realtech Pvt. Ltd. 117, Shreshth Vihar, Delhi-110092
3. Executive Engineer, Electricity Distribution Division-III, Loni, Ghaziabad, U.P.

..... **Respondents**

Counsel of Representationist : Sri Dilip Mani, Lucknow.
Counsel of Respondent No. 3 : Sri Amarjeet Singh Rakhra, Lucknow.

ORDER

The instant Representation has been filed by Sri Alok Kumar @ Alok Sharma, husband of Akanksha Sharma (The Owner), resident of Flat No. A-508, OXY Homes, Bhopura, Loni Road, Ghaziabad, U.P., being aggrieved by the Order dated 25.04.2026 passed by Zonal Consumer Grievance Redressal Forum, Loni, 33/11 kV, Electricity Sub-station Koyal Enclave (G.D.A.), Bhopura, Ghaziabad in Complaint No. 01 of 2025, which has been registered as Representation No. 23 of 2026 dated 03.06.2026.

The Order dated 25.04.2026 passed by the Zonal Consumer Grievance Redressal Forum, Loni, 33/11 kV, Electricity Sub-station Koyal Enclave (G.D.A.), Bhopura, Ghaziabad is as follows: -

‘फ़ोरम ने पाया कि विद्युत अधिनियम, 2003 की धारा 2 (15) के अनुसार, उपभोक्ता वह है, जिसे स्वयं उपयोग हेतु बिजली आपूर्ति की जाती है। फ़ोरम ने पाया कि शिकायतकर्ता स्वयं उपभोक्ता नहीं है।

अतः श्री आलोक कुमार शर्मा द्वारा दायर शिकायत विद्युत अधिनियम, 2003 की धारा 2 (15) के अन्तर्गत ग्राह्य नहीं है एवं शिकायत की प्रकृति उपभोक्ता शिकायत निवारण मंच विनियमन, 2022 के खण्ड



3.12 (ए) के अन्तर्गत मंच के मूल क्षेत्राधिकार के दायरे में स्वीकार योग्य नहीं है। अतः उपर्युक्त आधार पर शिकायत निरस्त की जाती है। परिवाद उपरोक्तानुसार निस्तारित किया जाता है।”

The Representationist Sri Alok Kumar @ Alok Sharma, in its Representation dated 25.05.2026, has stated as follows: -

“The present Appeal/Representation is being preferred under Section 42(6) of the Electricity Act, 2003 read with the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2022 against the impugned order dated 25.04.2026 passed by the Ld. Consumer Grievance Redressal Forum (CGRF), Loni, whereby the complaint preferred by the Appellant has been dismissed solely on the erroneous, hyper-technical, and legally unsustainable ground that the Appellant allegedly does not fall within the definition of "consumer" under Section 2(15) of the Electricity Act, 2003. The impugned order is arbitrary, contrary to the statutory scheme of the Electricity Act, 2003, inconsistent with the U.P. Electricity Supply Code, 2005 and the applicable Tariff Orders issued by the Uttar Pradesh Electricity Regulatory Commission, and suffers from complete non-application of mind inasmuch as the Ld. CGRF failed to adjudicate the substantive grievances raised by the Appellant concerning illegal electricity recovery, unauthorized levies, non-transparent billing practices, and regulatory violations committed by Respondent No(s). 1 and 2 while operating the prepaid electricity distribution mechanism within OXY Homes Society. The appellant Sh. Alok Kumar @ Alok Sharma husband of Akanksha Sharma (the owner) and 'Karta' of the family, is a permanent resident of Flat No. A-508, OXY Homes Society, Bhopura, Ghaziabad and has been continuously residing therein along with his wife and family members since the year 2016. The electricity supplied to the said premises is continuously used, consumed, and enjoyed by the Appellant and his family members for domestic purposes and the Appellant is the actual user, beneficiary, and end-consumer of the electricity supply connected with the said premises. Documentary records including electricity bills, prepaid meter statements, maintenance invoices, bank records, and other material placed before the Ld. CGRF clearly establish the Appellant's continuous residence, beneficial use, and financial liability concerning the electricity supply connected with Flat No. A-508. The Appellant had approached the Ld. CGRF raising serious grievances concerning excessive electricity charges recovery, inflated fixed charges, excessive unit rates, unauthorized DG charges, arbitrary penalties, illegal recovery of maintenance and other non-electricity charges through prepaid electricity billing systems, lack of transparency in billing practices, and non-



disclosure of electricity audit records by Respondent No(s). 1 and 2. The Appellant had specifically pleaded before the Ld. CGRF that Respondent No(s). 1 and 2, while operating the prepaid electricity distribution mechanism under the guise of a deemed franchisee/single-point electricity supply arrangement, were unlawfully recovering amounts from residents over and above the tariff payable to the electricity distribution licensee and were functioning in complete violation of Clause 4.46(b)(i) of the U.P. Electricity Supply Code, 2005 which mandates that such electricity distribution systems must operate strictly on a "no profit no loss basis." The Appellant had further specifically pleaded that Respondent No(s). 1 and 2 were illegally recovering DG charges, maintenance charges, AMC charges, vending charges, penalties, and other miscellaneous non-electricity charges through electricity billing and prepaid metering systems despite there being no statutory sanction permitting such coercive recovery through electricity supply mechanisms. The Appellant had further sought complete disclosure of electricity procurement records, billing calculations, statements of recovery, reconciled accounts, audit reports, and other financial records concerning the prepaid electricity distribution mechanism operating within OXY Homes Society and had specifically prayed for an independent forensic/electricity audit in order to ascertain the actual amount collected from residents vis-à-vis the amount paid to the distribution licensee. The grievances raised by the Appellant were not isolated or individual in nature. Several similarly situated residents of OXY Homes Society had independently submitted written complaints and representations before the Ld. CGRF raising substantially identical grievances concerning excessive electricity recovery. inflated fixed charges, illegal DG charges, arbitrary prepaid billing practices, unauthorized levies, and non-disclosure of electricity audit records. At least three other residents had also filed complaints raising materially similar allegations against Respondent No(s). 1 and 2. The existence of multiple complaints concerning the same prepaid electricity distribution mechanism clearly established a recurring and systemic pattern of statutory and regulatory violations affecting a large body of residents and consumers within the society. During the proceedings, the Ld. CGRF itself acknowledged that under Clause 4.46 (b) (i) of the U.P. Electricity Supply Code, 2005, a builder/deemed franchisee cannot derive profit from electricity distribution and can recover electricity charges only on a "no profit no loss basis." The Ld. Forum further acknowledged that fixed charges recovered from residents cannot exceed the charges actually paid to the electricity distribution licensee and that deemed franchisees are under statutory obligations to maintain transparency and audited accounts under the applicable UPERC Tariff Orders. Despite recording such findings and acknowledging the



existence of serious statutory and regulatory issues, the Ld. Forum failed to adjudicate the legality of the billing and recovery mechanism adopted by Respondent No(s). 1 and 2 and failed to grant any effective or consequential relief in favour of the Appellant. Instead, the complaint was dismissed solely on the hyper-technical ground that the Appellant is not a "consumer" under Section 2 (15) of the Electricity Act, 2003. The Ld. CGRF gravely erred in holding that the Appellant is not a "consumer" merely because the premises or related records stand in the name of the Appellant's wife. The Ld. Forum failed to appreciate that the definition of "consumer" under Section 2 (15) of the Electricity Act, 2003 is broad, inclusive, and beneficial in nature and extends to every actual user and beneficiary of electricity supply. The Appellant, being the husband of the recorded owner, continuous resident of the premises since 2016, actual user and beneficiary of electricity supply, and person responsible for payment of electricity charges and related dues, squarely falls within the ambit and scope of "consumer" under Section 2(15) of the Electricity Act, 2003. The impugned order is contrary to the law laid down in Hari Chand v. Haryana Vidyut Prasaran Nigam Ltd. wherein the Hon'ble National Consumer Disputes Redressal Commission recognized that an actual user and beneficiary of electricity supply is entitled to maintain proceedings concerning electricity disputes even where the electricity connection stands in the name of another person. The Ld. Forum failed to appreciate that electricity consumption in a domestic household is collective in nature and the benefit of electricity supply is enjoyed by all members residing in the premises. The statutory protection available under the Electricity Act cannot be denied to an actual user merely because the electricity connection or property records stand in the name of another family member. The impugned order further suffers from complete non-application of mind, jurisdictional error, abdication of statutory duties, and failure to exercise the powers vested in the Ld. CGRF under Section 42 of the Electricity Act, 2003. Having acknowledged the statutory obligations governing deemed franchisees and the allegations concerning illegal recoveries and non-transparent billing practices, the Ld. Forum could not have dismissed the complaint solely on a technical objection relating to maintainability. The present dispute squarely falls within the statutory grievance redressal mechanism established under Section 42 of the Electricity Act, 2003 and therefore required adjudication on merits by the Ld. CGRF. No other appeal, representation, writ petition, suit, or proceeding challenging the impugned order dated 25.04.2026 is pending before any Court, Tribunal, Regulatory Authority, or any other competent Forum. The present Representation/Appeal is within limitation and is fully maintainable under Section 42 (6) of the Electricity Act, 2003 read with the applicable UPERC



Regulations. The Hon'ble Electricity Ombudsman has jurisdiction to entertain and adjudicate the present Appeal/Representation.

In view of the facts and circumstances stated hereinabove, it is most respectfully prayed that this Hon'ble Electricity Ombudsman may graciously be pleased to: -

- a) Set aside the impugned order dated 25.04.2026 passed by the Learned Consumer Grievance Redressal Forum (CGRF), Loni;
- b) Hold and declare that the Appellant falls within the definition of "consumer" under Section 2(15) of the Electricity Act, 2003;
- c) Direct fresh adjudication of the complaint on merits in accordance with law;
- d) Direct Respondent No(s). 1 and 2 to produce complete electricity billing records, audit reports, statements of recovery, tariff calculations, and related financial records concerning the prepaid electricity distribution mechanism operating within OXY Homes Society;
- e) Direct independent forensic/electricity audit of the prepaid electricity distribution and recovery mechanism operating within OXY Homes Society;
- f) Restrain Respondent No(s). 1 and 2 from recovering unauthorized/non-electricity charges through electricity billing systems contrary to law;
- g) Direct Respondent No(s). 1 and 2 to install separate electricity meters for all facilities, commercial establishments, utility services, and revenue-generating equipment / installations situated in the towers and common areas of the society;
- h) Direct Respondent No(s). 1 and 2 to refund/return the excess amount illegally collected from the resident, along with compound interest @ 18% per annum;"

During the hearing on 18.06.2026 the counsel of the Representationist stated that the Representationist, being the husband of the recorded owner Mrs. Akanksha Sharma, continuous resident of the premises since 2016, is actual user and beneficiary of electricity supply and person responsible for payment of electricity charges and related dues so he squarely falls within the ambit and scope of "consumer" under Section 2 (15) of the Electricity Act, 2003.

During arguments, learned counsel for the Licensee submitted that the present Representation is not maintainable on the ground that Shri Alok Kumar is not the consumer, as the electricity connection stands in the name of Smt. Akanksha Sharma, wife of Shri Alok Kumar.



For further hearing, next date 07.07.2026 was fixed.

On 07.07.2026, learned counsel appearing for the Representationist filed an application seeking withdrawal of the present Representation, stating as follows: -

“The present Appeal/Representation has been filed preferred by the appellant in capacity of husband of the registered owner, Karta of the family and also occupier of the flat, under Section 42 (6) of the Electricity Act, 2003 read with the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2022 against the impugned order dated 25.04.2026 passed by the Ld. Consumer Grievance Redressal Forum (CGRF), Loni, whereby the complaint preferred by the Appellant has been dismissed on the sole ground that the Appellant allegedly does not fall within the definition of "Consumer" under Section 2(15) of the Electricity Act, 2003. After hearing at length appellant/applicant in willing and seeking liberty to withdraw the instant appeal, seeking with liberty to file a fresh before the court below/appropriate i.e. the Ld. Consumer Grievance Redressal Forum (CGRF), Loni, with a proper party name i.e. on behalf the registered owner of the flat, along with further direction the court below to consider and decide all the grievances present/prayed before that with the complaint therein within the stipulated period time which the court deems fit and proper.

Therefore kindly be pleased to allow the instant application withdraw the instant appeal, seeking with liberty to file a fresh before the Court below/appropriate i.e. the Ld. Consumer Grievance Redressal Forum (CGRF), Loni, with a proper party name i.e. on behalf the registered owner of the flat, along with further direction the Court/Forum below to consider and decide all the grievances present/prayed before that with the complaint therein within the stipulated period time which the court deems fit and proper, prayed accordingly, in the interest of justice.”

In view of above withdrawal application, the present case is **dismissed** with liberty to file afresh before the CGRF, following the due process of law, who will decide the matter expeditiously as per the provisions of UPERC (Consumer Grievances Redressal Forum) Regulations, 2022.

Dated:9-7-26


(Sanjay Srivastava)
Electricity Ombudsman, U.P.